

**URGENT: Formal Section 14(4) Complaint & Evidentiary Dossier –
Judicial Misconduct & Registry Malfeasance (Ref: EH/JO/2026/003)**

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Cc "enquiries"<enquiries@inforegulator.org.za>

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Dear Chairperson and Members of the Judicial Service Commission,

Please find attached a formal complaint dossier submitted in terms of Section 14(4) of the Judicial Service Commission Act.

This submission details a severe and compounding breakdown of institutional integrity within the Western Cape High Court and Labour Court. The attached evidentiary bundle establishes a documented paper trail of registry malfeasance, an absence of judicial oversight, and judicial misconduct that has severely prejudiced the administration of justice.

For the Committee's immediate attention, the dossier comprehensively outlines three core grievances:

Judicial Misconduct & Procedural Unfairness: The conduct of Judge Anderson on 25 March 2026, specifically the failure to apply the "Ambulance at the Courthouse" principle. The subsequent issuing of a punitive Scale C costs order (exceeding R84,000.00) against a vulnerable litigant in visible, acute psychiatric distress warrants urgent investigation.

Failure of Judicial Oversight: The absolute silence and failure to intervene by the Judge Presidents of the Labour and High Courts following a formal escalation on 9 June 2026 (Ref: EH/JO/2026/003).

Registry Malfeasance & Statutory Breaches: Documented misconduct by specific registry officials, including the suppression of audio evidence by Acting Chief Registrar Hanekom, procedural gatekeeping by Registrar Ismail, and a severe statutory data breach by Registrar Soundy (involving the Armstrong v City of Cape Town file).

Important Note Regarding Parallel Investigations & Attestation:

The JSC is formally notified that this complaint is inextricably linked to an active Information Regulator investigation (Ref: POPIC20263458) concerning the systemic POPIA and PAIA violations executed by registry staff. We submit that the IR's findings must be integrated into the JCC's own audit of the registry.

Furthermore, due to the extreme financial destitution directly caused by the impugned Scale C costs order, physical commissioning of these documents has been obstructed. Consequently, the dossier includes a formal declaration under Section 13 of the Electronic Communications and Transactions Act (ECTA), which legally anchors the digital signature and serves as a binding attestation of truth.

Immediate Directives Sought:

We urgently request that the JCC issue an immediate directive to the relevant registries to preserve all electronic correspondence, metadata, and audio recordings related to these matters to prevent further evidence tampering or suppression.

Kindly acknowledge receipt of this email and the attached dossier, and advise on the provision of a formal JSC reference number.

Yours faithfully,
Wilbur Matthee

1 Attachment(s)

JSC_Formal_Complaint_Matthe...

7.9 MB